

Superior Court of the State of California, County of Orange

TENTATIVE RULINGS FOR DEPARTMENT C16

HON. JUDGE CARMEN R. LUEGE

Date: September 18, 2026

Posted: September 17, 5:00 PM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4:30 p.m. on Thursday. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5216. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appeareances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Remote Appearances: Department C16 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 10:00 a.m. on Friday, check-in online via the Court's civil video appearance website at [Civil Appearance Procedure and Information | Superior Court of California | County of Orange \(occourts.org\)](https://www.occourts.org); (2) participants will then be prompted to join the courtroom's Zoom hearing session; and (3) the calendar will be displayed and participants will then be instructed to rename their Zoom name to include their hearing's calendar number. Check-in instructions and an instructional video are available on the court's website. Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." (<https://www.occourts.org/system/files/hr/div3.pdf>.)

#	Case Name	Tentative
50	La Paz Village Investors, LLC vs. Orange County Realtors, Inc. 26-01538551	1. Demurrer to Amended Cross-Complaint 2. Motion to Strike Cross-Complaint No Tentative. Parties to Appear.
53	Gianulias vs. Gibson 23-01308044	1. Motion to Quash Service of Summons 2. Motion to Set Aside/Vacate Default No Tentative. Parties to Appear.
57	Diliberto vs. Surgical Care Affiliates, LLC 23-01358521	Motion for Terminating Sanctions The Motion for Terminating Sanctions brought by Defendants Surgical Care Affiliates, LLC and Surgicare of La Veta, Ltd. (dba Newport Coast Surgical Institute) is DENIED. Pursuant to Code of Civil Procedure section 2023.030, the Court may impose a terminating sanction against one “engaging in conduct that is a misuse of the discovery process,” via an order dismissing the action. (Code Civ. Proc., § 2023.030, subd. (d)(3).) Disobeying a court order to provide discovery is a misuse of the discovery process. (Code Civ. Proc., § 2023.010, subd. (g).) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (<i>Rodriguez v. WNT, Inc.</i> (2025) 116 Cal.App.5th 791, 810.) “Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” (<i>Ibid.</i> [internal quotations omitted].)

		“The statutory requirement that there must be a failure to obey an order compelling discovery before the court may impose a nonmonetary sanction for misuse of the discovery process provides some assurance that such a potentially severe sanction will be reserved for those circumstances where the party’s discovery obligation is clear and the failure to comply with that obligation is clearly apparent.” (<i>Moofly Productions, LLC v. Favila</i> (2020) 46 Cal.App.5th 1, 11.) “In addition, terminating sanctions are appropriate only if a party’s failure to obey a court order actually prejudiced the opposing party.” (<i>Ibid.</i>) “Dismissal is a proper sanction to punish the failure to comply with a rule or an order only if the court’s authority cannot be vindicated through the imposition of a less severe alternative.” (<i>Electronic Funds Solutions v. Murphy</i> (2005) 134 Cal.App.4th 1161, 1183.) “[T]he court may <i>not</i> impose sanctions which are designed <i>not to accomplish the objects of the discovery but to impose punishment.</i>” (<i>Ibid.</i>) Applying the above authority herein, a terminating sanction is inappropriate, given it is undisputed that Plaintiff complied with the portion of the order dated July 11, 2025, which required discovery responses. (¶12-¶14 of Simone Declaration; See also ¶3 of Khouri Declaration.) The above referenced order required discovery responses “within 20 days-notice of this order.” (ROA No. 506.) A review of the Court record reveals that Plaintiff was provided notice the same day as the hearing, July 11, 2025, via email. (ROA No. 505.) Adding a two-court day extension for electronic service (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)), responses were due by August 4, 2025, the date that moving counsel concedes responses were received. (¶14 of Simone Declaration.) Based on the above, Defendants have not established a “failure to obey an order compelling discovery,” as required. (<i>Moofly Productions, LLC v. Favila</i> (2020) 46 Cal.App.5th 1, 11.) At best, Defendants assert Plaintiff failed to comply with the order dated July 11, 2025, via his failure to pay the identified monetary sanctions. (See ¶15-¶17 of Simone Declaration.) However, “a terminating sanction issued solely because of a failure to pay a monetary discovery sanction is never justified.” (<i>Newland v. Superior Court</i> (1995) 40 Cal.App.4th 608, 615.) Such an order would be impermissibly “designed <i>not to accomplish the objects of the discovery but to impose punishment.</i>” (<i>Electronic Funds Solutions v. Murphy</i> (2005) 134 Cal.App.4th 1161, 1183.) Based on all the above, the instant Motion is DENIED, along with Defendants’ request for attorneys’ fees.
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		Given the above compliance, no basis for an additional monetary sanction has been shown. Additionally, Defendants cite no authority which permits a monetary sanction, solely for failure to pay an earlier monetary sanction. As explained by the Court in <i>Newland v. Superior Court</i> (1995) 40 Cal.App.4th 608, a further monetary sanction is unnecessary, as the initial monetary sanction has “the force and effect of a money judgment” and is “immediately enforceable through execution....” (<i>Id.</i> at p. 615.) Defendants’ Request for Judicial Notice is GRANTED, as to Exhibits A through E, as the identified documents are court records, subject to judicial notice pursuant to Evidence Code section 452, subdivision (d). The Request for Judicial Notice is DENIED, as to Exhibits F and G, as the attached correspondences are not appropriate for judicial notice, given they could reasonably be disputed.
59	Dascanio vs. Arsenian 22-01257590	Motion for Summary Judgment and/or Adjudication The Motion for Summary Judgment or Summary Adjudication brought by Cross-Defendants Benjamin Arsenian and the Law Offices of Benjamin Arsenian to adjudicate the claims alleged by Cross-Complainant Dennis Dascanio and his law office (ROA 751) is DENIED. The moving Cross-Defendant Arsenian and his law firm will be jointly referred to as ARSENIAN. The opposing party, Cross-Complainant Dascanio and his law firm will be jointly referred to as DASCANIO. Initially, Arsenian Cross-Defendant requests adjudication in their favor, based on their assertion that Dascanio’s Cross-Complaint is attempting to relitigate the sufficiency of a fee-sharing agreement, which this Court has already found to be unenforceable. (See Motion: 8:6-11:6) However, Arsenian subsequently concedes that the issues raised within the Cross-Complaint differ from those previously determined: “The Court’s prior ruling did not find that Arsenian owed Santamaria a duty to deposit settlement funds into an account jointly controlled with Dascanio [and] did not find that Arsenian was liable to Santamaria for delayed settlement payment...” (Motion: 10:19-21.) As it is these later issues which are raised within the Cross-Complaint and <i>not</i> the sufficiency of the fee-sharing agreement between Arsenian and Dascanio, the issues are not identical, and collateral estoppel does not apply. (<i>Lucido v. Superior Court</i> (1990) 51 Cal.3d 335, 341.)

		Additionally, Arsenian offered no evidence relevant to the issues raised within the Cross-Complaint, necessarily, triable issues remain. In seeking summary judgment, Arsenian <i>repeatedly</i> reference the fact that the Cross-Complaint(ROA 359) brought by Marco Santamaria is directed solely against Dascanio. (See SSUF Nos. 1 and 35; See also Motion: 2:4-9, 11:16-17, 12:4-10, 13:18-25 and 16:27-17:5.) The allegations made by Mr. Santamaria are the subject of nearly <i>half</i> of Arsenians undisputed facts (See SSUF Nos. 1-14 and 32-35); however, the Reply concedes that “Santamaria did not have to sue Arsenian before Dascanio could seek equitable indemnity...” (Reply: 2:23-24.) As noted by Cross-Complainants, courts have held that “plaintiffs should no longer have the unilateral right to determine which defendant or defendants should be included in an action....” (<i>Evangelatos v. Superior Court</i> (1988) 44 Cal.3d 1188, 1197.) Additionally, defendants have the option to “bring other tortfeasors who were allegedly responsible for the plaintiff’s injury into the action through cross-complaints...” (<i>Ibid.</i>) Primarily, Arsenian asserts that Dascanio failed to plead a common legal obligation or joint liability, sufficient to support claims for indemnity or contribution. (Motion: 1:12-16; See also 11:12-14.) “Equitable indemnity, which requires no contractual relationship, is premised on a joint obligation to another for damages; it is subject to allocation of fault principles and comparative equitable apportionment of loss.” (<i>C.W. Howe Partners Inc. v. Mooradian</i> (2019) 43 Cal.App.5th 688, 700.) “The elements of a cause of action for [equitable] indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is...equitably responsible.” (<i>Ibid.</i>) The Cross-Complaint alleges that Arsenian had an attorney-client relationship with Marco Santamaria. (¶12 of Cross-Complaint.) Arsenian concedes that Dascanio alleges “that he proposed...that the settlement funds be deposited into a joint trust account requiring both Dascanio and Arsenian to consent to distribution of funds, and that Arsenian refused that proposal.” (See SSUF No. 22.) It is similarly undisputed that Dascanio “alleges that Arsenian’s refusal to agree to the joint account resulted in a delay in payment to Santamaria of his portion of the settlement money.” (SSUF No. 23.) Additionally, Dascanio alleges “that Arsenian advised Santamaria that the settlement funds should not be deposited into a jointly controlled account.” (SSUF No. 25.) Nonetheless, Arsenian asserts “Dascanio pleads no independent tort by Arsenian against Santamaria...” (Motion: 4:20-21.)
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		In prior challenges to this Cross-Complaint, the Court interpreted the above allegations as alleging malpractice. (See ROA No. 830 [ruling on anti-SLAPP] and ROA No. 835 [ruling on demurrer].) Despite these prior findings, Arsenian does not address the underlying facts alleged, whether liability can be established thereon or, specifically, whether malpractice can be shown. At best, the motion asserts without citation to authority or evidence that “Arsenian’s alleged refusal to accept Dascanio’s proposed joint-account condition does not create a duty owed by Arsenian to Santamaria, does not make Arsenian a tortfeasor as to Santamaria, and does not transform Dascanio’s alleged refusal to release or endorse a settlement funds into common liability shared with Arsenian.” (Motion: 12:21-27; See also Motion: 17:15-16.) “Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (<i>People v. Stanley</i> (1995) 10 Cal.4th 764, 793.) Within its Reply, Arsenian asserts that Dascanio failed to present “expert opinion or other opposition evidence” which establishes malpractice (Reply: 3:22-23); however, it is a moving defendant’s burden to establish “that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action” (Code Civ. Proc., § 437c, subd. (p)(2)) and “a plaintiff has no evidentiary burden on summary judgment unless and until the moving defendant first meets its initial burden.” (<i>Dix v. Live Nation Entertainment, Inc.</i> (2020) 56 Cal.App.5th 590, 604-605.) The Court notes that it is undisputed that the Cross-Complaint does not <i>expressly</i> allege “tortious interference, malicious prosecution/wrongful use of civil proceedings, fraud, intentional misrepresentation, professional negligence or legal malpractice against Santamaria,” as the Cross-Complaint does not identify the specific legal theory, upon which liability against Arsenian is premised. (See SSUF No. 31.) At best, the parties appear to agree to the existence of a slight pleading defect. “A defendant’s motion for summary judgment necessarily includes a test of the sufficiency of the complaint.” (<i>American Airlines, Inc. v. County of San Mateo</i> (1996) 12 Cal.4th 1110, 1117.) “When a motion for summary judgment is used to test whether the complaint states a cause of action, the court will apply the rule applicable to demurrers and accept the allegations of the complaint as true.” (<i>Ibid.</i>)
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		“When considering a motion for summary judgment as a motion for judgment on the pleadings because the time for filing a demurrer has passed, we must determine whether the facts alleged in the complaint provide a basis for cause of action under any theory.” (<i>Prue v. Brady Co./San Diego, Inc.</i> (2015) 242 Cal.App.4th 1367, 1376.) “In so doing, we treat the properly pleaded allegations of the complaint as true and liberally construe those allegations with a view to attaining substantial justice between the parties. (<i>Ibid.</i>) Applying the above herein, as discussed more fully above, the facts alleged within the Cross-Complaint sufficiently allege legal malpractice, which may establish Arsenian is jointly liable for the damage to Santamaria. (See ¶2-¶5 of Cross-Complaint.) Consequently, even interpreting the motion as a pleading challenge, the motion is DENIED. The Court did not consider arguments raised for the first time in the Reply, as “[i]t is elementary that points raised for the first time in a reply brief are not considered by the court.” (<i>Magic Kitchen LLC v. Good Things Intern. Ltd.</i> (2007) 153 Cal.App.4th 1144, 1161.) The Requests for Judicial Notice filed by Arsenian (ROA No. 899) and Dascanio (ROA No. 917) are both GRANTED, pursuant to Evidence Code section 452, subdivision (d); however, judicial notice is limited to the fact of the filings and not the truth of any statements therein. (<i>Sosinsky v. Grant</i> (1992) 6 Cal.App.4th 1548, 1564.)